

DAVIS, ET AL. VS. GENERAL MOTORS LLC

CASE NUMBER: 25CV-0208830

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 9, 2026 to Plaintiffs' counsel and Defendant's Counsel for failing to appear at the Mandatory Settlement Conference on June 29, 2026. Defendant's counsel filed a written response that provides evidence that the matter settled the Friday prior to the Mandatory Settlement Conference, that Plaintiff's counsel electronically served a Notice of Settlement at 9:43 a.m. the date of the settlement, and that in an abundance of caution, staff from Defendant's counsel's office tried to reach the clerk by phone the morning of the settlement conference. In light of this, the Court will **DISCHARGE** the Order to Show Cause as to Defendant's counsel. The Court notes that a Notice of Settlement was not filed in this matter. Plaintiffs' counsel did not file a written response. With no sufficient excuse for failing to appear at the Mandatory Settlement Conference, monetary sanctions are imposed in the amount of \$250 against Plaintiffs' counsel California Consumer Attorneys, P.C. The clerk is directed to issue an Order of Sanctions. The Court notes that trial in this matter is calendared for September 1, 2026. Based on the evidence provided by Defendant's counsel, the trial date is vacated. The matter will be on calendar on **Monday, October 5, 2026 at 9:00 a.m. in Department 63** for status of Notice of Settlement and judgment/dismissal. **No appearance is necessary on today's calendar.**

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

CASE NUMBER: CVPO21-0198083

Tentative Ruling on Motion for Summary Judgment/Adjudication: Six Defendants have filed a Motion for Summary Judgment or Adjudication that was joined by a seventh Defendant. The motion and joinder are opposed by Plaintiffs. The Court notes that the filings for this motion total more than 9,000 pages. The Court has worked diligently to review this matter. However, due to the volume of the filings, the Court has been unable to review the motion and supporting evidence in their entirety. The Court further notes that oral argument on this motion is likely to take longer than can be accommodated on the Law & Motion calendar. To allow time for the Court to fully review this matter and issue a tentative ruling, and also to provide the parties sufficient time for oral argument, the Court will specially set the hearing on the motion for **Friday, August 28, 2026 at 8:30 a.m. in Department 63**. Based upon the circumstances articulated above, the Court finds good cause to hear the motion within 30 days of trial pursuant to CCP § 437c(a)(3). No additional briefing is permitted. A tentative ruling will be posted no less than twelve hours prior to the hearing. **No appearance is necessary on today's calendar.**

JS MECHANICAL, INC. VS. LAFF, LLC, ET AL.

CASE NUMBER: 25CV-0207114

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Defendant and Defendant's counsel on June 23, 2026 for failure to appear in court on June 1, 2026. Defendant filed a written response that provides sufficient excuse for the non-appearance. The Order to Show Cause is **DISCHARGED**. The matter is on calendar today at 9:00 a.m. and an appearance will be necessary at 9:00 a.m.

MALINOVSKY VS. SHASTA UNION HIGH SCHOOL DISTRICT, ET AL.

CASE NUMBER: 26CV-0210144

Tentative Ruling on Demurrer and Motion to Strike: Respondents Shasta Union High School District ("SUHSD"), Jason Rubin, Heath Bunton, and Karen Fifield demur to the First Cause of Action for Writ of Mandate under CCP § 1085 contained within the Verified First Amended Petition for Writ of Peremptory Mandate (First Amended Petition) filed by Petitioner Joseph Malinovsky filed on April 10, 2026. Respondents also move to strike the First Amended Petition. Petitioner opposes the demurrer and motion to strike. The Court notes Petitioner's opposition to the demurrer exceeds 15 pages, in violation of CRC 3.1113(d). The Court, in its discretion, will consider the excess pages.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with